

		show the costs were unnecessary (at the time of incurring the costs) or unreasonable in amount. (<i>Ibid.</i>) Defendant failed to do so here. Defendant also failed to meet its burden to show the costs for transcribing or videotaping the depositions of all other experts were unnecessary or unreasonable in amount. In the reply, Defendant argues Plaintiff failed to submit invoices for the costs to transcribe the depositions of Sheriff Abdalla, Mark Brigham, and Dominguez Valdez III. Defendant, however, did not challenge the necessity or reasonableness of these deposition costs in the moving papers – only those related to expert depositions. As such, these expressly allowable costs were never put in issue and Defendant failed to meet its moving burden. The motion is therefore GRANTED in the amount of \$3,580, but otherwise DENIED as to this item of costs. <u>Item 13:</u> Expenses for models, enlargements, photocopies and electronic presentation of exhibits, including costs of rental equipment and electronic formatting, that are “reasonably helpful to the trier of fact” are recoverable costs. (Code Civ. Proc., § 1033.5, subd. (a)(13); <i>Christler v. Express Messenger Systems, Inc.</i> (2009) 171 Cal.App.4th 72, 90-91; <i>Ripley v. Pappadopoulos</i> (1994) 23 Cal.App.4th 1616, 1623.) Defendant challenges \$8,514 of costs associated with “MediVisuals + High Impact – Medical Illustrations.” Plaintiff contends the medical illustrations prepared by MediVisuals + High Impact were displayed to the jury during trial on the direct examination of Plaintiff’s expert and in closing argument to summarize and illustrate the nature and extent of Plaintiff’s injuries. Defendant does not dispute this fact. Defendant failed to meet its burden the costs were unnecessary or unreasonable in amount. The motion is therefore DENIED as to this item. Accordingly, costs shall be reduced by \$3,580 and the total amount awarded is \$42,175.28. Counsel for Plaintiff shall give notice of this ruling.
9.	Ani vs. Fowler 2024-01420562	Before the court is the motion of plaintiff Jennifer Ani (Plaintiff) for an order taxing costs claimed by defendants Monica Liliana Aragon-Guzman, Kelly Reeves, and Paw Prints in the Sand (collectively, Defendants) in memorandum of costs they filed on March 17, 2026. As more fully set forth below, the motion is DENIED. Allowable costs are set forth in Code of Civil Procedure section 1033.5, subdivision (a)(1), but recovery is limited

		to those costs which are reasonable in amount and reasonably necessary to the conduct of the litigation. (Code Civ. Proc. § 1033.5, subd. (c)(2) & (3).) A verified memorandum of costs constitutes prima facie evidence of the reasonable necessity of the costs claimed. Supporting documents must be submitted only if costs have been put in issue by a motion to tax costs. (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1267.) If the items on their face appear to be proper charges, the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (<i>Ladas v. Cal. State Auto. Ass’n</i> (1993) 19 Cal.App.4th 761, 774-776.) On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (<i>Id.</i> at pp. 774-776.) Determination of whether a cost is reasonable is a question of fact within the trial court’s discretion. (<i>Id.</i> at p. 761.) Here, Defendants’ memorandum of costs claimed costs of \$3,445.54, consisting of \$1,805 in filing and motion fees, \$150 in jury fees, and \$1,491.54 in service of process fees. Plaintiff’s motion challenges only the \$1491.54 for service of process fees. Plaintiff contends only costs for serving the summons and complaint are recoverable and, as the responding parties in the actions, Defendants obviously did not incur such costs. Plaintiff contends the memorandum of costs indicates these costs were incurred in serving subpoenas and obtaining records from various medical providers and the City of Mission Viejo, which means that they are investigative costs and not recoverable. The costs of serving subpoenas and obtaining business records through subpoenas, however, are recoverable costs. Although case law recognizes they are recoverable under Code of Civil Procedure section 1033.5, subdivision (a)(3) as deposition costs rather than section 1033.5, subdivision (a)(4) as service of process costs, such costs nonetheless are recoverable. (<i>Naser v. Lakeridge Athletic Club</i> (2014) 227 Cal.App.4th 571, 576-578.) Other case law suggest they are recoverable as service of process costs. (See <i>Garcia v. Tempur-Pedic North America, LLC</i> (2024) 98 Cal.App.5th 819, 824-825.) Moreover, even if they were not recoverable as a matter of right, they would be recoverable in the costs discretion, and the court finds these costs to be reasonable and appropriate in this case.
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		Based on the foregoing, the motion is DENIED. Defendants are entitled to recover the full amount of costs sought in their memorandum of costs. As the prevailing parties, Defendants are ordered to give notice of this ruling.
10.	Rarz Yaron v. Sierra S. Conley 2026-01546480	CONTINUED TO DECEMBER 10,2026, at request of moving party.
11.	Contreras vs. Ace Restoration & Construction, Inc. 2022-01247671	Before the court is the motion of plaintiff Carla Contreras (Plaintiff) to enforce settlement agreement pursuant to Code of Civil Procedure section 664.6. Specifically, Plaintiff seeks an order enforcing the settlement agreement entered into between Plaintiff and defendants Ace Restoration & Construction, Inc., Cheree Nichelle Fay, and Shelby Lynn Cordova (collectively, Defendants) by entering judgment against Defendants and compelling them to execute valid and properly notarized documents including the required Deed of Trust, appointing an elisor to execute such documents if Defendants fail to comply, and awarding attorney fees and costs against Defendants. As more fully set forth below, the motion is GRANTED. During 2024 when the parties' entered into the settlement agreement and Plaintiff dismissed this action, Code of Civil Procedure section 664.6, subdivision (a), stated, "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." Here, Plaintiff has shown the parties entered into the settlement agreement and agreed it would be enforceable pursuant to section 664.6. Moreover, the parties stipulated and the court agreed to retain jurisdiction to enforce the agreement. Plaintiff also has shown Defendants breached the settlement agreement. Defendants have not filed any opposition to this motion. The court therefore finds Plaintiff satisfied the requirements of section 664.6 and Defendants breached the agreement warranting this motion to enforce the settlement. Based on the foregoing, the motion is GRANTED and the court will enter judgment against Defendants based on the